

		of records produced the requested documents; nor has plaintiff objected to the subject subpoena or filed any motion to quash. (Leeper Decl. ¶ 6.) This motion was filed on December 1, 2025, which is 68 days after the date for production. Accordingly, the motion is untimely and the Court has no jurisdiction to entertain it. Accordingly, it is DENIED. Moving Party to give notice.
5.	30-2024-01431856 Vargas vs. Hernandez	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories 3. Motion to Compel Production Plaintiff Yharetzy Vargas, a minor by and through her guardian ad litem, Yuliana Vargas Pompa (“Plaintiff”) moves to compel defendant Mario Lombera (“Defendant”) to serve verified responses to Form Interrogatories (Set One), Special Interrogatories (Set One), and Demands for Production (Sets One) and for an order imposing monetary sanctions against Defendant for her failure to serve timely responses. Verified responses to the discovery at issue have been provided. Thus, the Motions are DENIED as MOOT. However, Plaintiff’s requests for monetary sanctions against Defendant and her counsel are GRANTED in the reduced amount of \$600.00, as the Court finds no substantial justification for Defendant’s delay in providing responses until after these Motions were filed. (Code Civ. Proc., §§ 2030.300(d), 2031.310(h); Cal. Rules of Court, rule 3.1348(a).) Sanctions to be paid <u>within 30 days</u>. Moving party to give notice.
6.	30-2024-01413404 Ben’s Asphalt & Maintenance Company, Inc vs. W&Z Development Corporation	1. Case Management Conference 2. Demurrer to Amended Complaint 3. Demurrer to Amended Complaint 4. Motion for Attorney Fees 5. Motion to Strike Portions of Complaint <u>DEMURRER AND MOTION TO STRIKE:</u> Defendant W & Z Development Corporation dba Western Pacific Construction Services (“Defendant”) demurs to the second cause of action for fraud and moves to strike Plaintiff’s claim to punitive damages as alleged in the operative Second Amended Complaint (“SAC”). Plaintiff Ben’s Asphalt & Maintenance Company, Inc. (“Plaintiff”) opposes the demurrer and motion to strike. I. <u>Demurrer</u> A complaint, with certain exceptions, need only contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language’ (Code Civ. Proc., § 425.10, subd. (a)(1)) and will be upheld ‘ “so long as [it] gives notice of the issues sufficient to enable preparation of a defense.” ’ [Citation.]’ (<i>Morris v. JPMorgan Chase Bank, N.A.</i> (2022) 78 Cal.App.5th 279, 292.)